

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600409	PRECIADO VS PRECIADO	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The Court GRANTS Defendant Omar Prediado's Motion.

Defendant moves to strike several allegations in the Complaint which address how Plaintiff resent his father, suffered from "abandonment issues" as a teenager, exhibited "stubbornness" that family members hoped would pass, was arrested in Arizona, and may someday owe restitution. None of these allegations is essential or pertinent to any cause of action pleaded. These allegations serve no purpose other than to disparage Defendant. Consequently, Defendant contends that these inflammatory allegations have nothing to do with any of the central issues in this case. Defendant contends that the allegations at issue are irrelevant and immaterial to the Complaint, and the Motion should be granted in its entirety.

The subject allegations are:

1. "Defendant had resentment toward Decedent (his father) because his parents got divorced in the mid-1990s." (Complaint, p. 3:23-25);
2. "Plaintiff believed that Defendant would eventually come around and get over his anger issues with his (deceased) father." (Complaint, p. 5:9-10);
3. "Plaintiff and Wells believed that once Defendants [sic] stubbornness passed, that he could easily transfer the Property into a Trust in the future." (Complaint, p. 5:18- 19);
4. Plaintiff believes that Defendant suffered from abandonment issues as a teenager when their parents divorced and coped by ignoring the family. Plaintiff thought he would eventually get over it, but he became progressively worse." (Complaint, p. 7:5-7);
5. "In 2025, Tejeda contacted Plaintiff and informed Plaintiff that Defendant was recently arrested (for a second time) for assault with a deadly weapon in Arizona. Plaintiff thinks Defendant is out on bail and may have future financial restitution issues, which would explain Defendant's [sic] urgency to sell the Property." (Complaint, ¶ 45); and
6. "It is not lost on Plaintiff that Defendant was recently arrested (for a second time) for assault with a deadly weapon in Arizona, and that Defendant may have future financial restitution issues which would explain how Defendant, who previously wanted nothing to do with [sic] Property, now suddenly wants to sell the Property (to generate some money)." (Complaint, ¶ 101).

In the Opposition, Plaintiff contends that the six allegations at issue are not mere irrelevant superfluous assertions. Plaintiff contends that the allegations establish essential background and vital contextual facts that relate to Defendant's decade of

repudiation of any interest in the foregoing realty, his relentless refusal to participate in the realty as well as to contribute to its expenses, and the equity considerations foundationally supporting Plaintiff's several causes of action.

In Reply, Defendant contends that Plaintiff's untimely Opposition concedes the merits of the Motion by describing these allegations as "background" and "contextual facts" and failing to show that any of the allegations are essential to Plaintiff's causes of action.

Analysis

I. Meet and Confer

Defendant has met the statutory obligation to meet and confer pursuant to CCP § 435.5. (See Declaration of Robert J. Im filed on August 10, 2026.)

II. Standard

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.)

III. Timeliness of Opposition

Opposition papers must be filed and served at least 9 court days before a hearing. (CCP §§ 1005(b).) The Court may decline to consider a late-filed paper. (Cal. Rules of Court, rule 3.1300(d).) Here, with the hearing set for September 14, 2026 and the Labor Day holiday, Plaintiff's deadline to file his Opposition was August 31, 2026. Plaintiff, represented by counsel, did not file the Opposition until September 2, 2026. Defendant asks the Court not to consider the untimely Opposition. However, the Court exercises its discretion and considers the untimely Opposition.

IV. Merits

Plaintiff concedes that the subject allegations at issue are "Background" Allegations that "Bolster[]" Claims Already Viable Without Them. Plaintiff contends that an allegation survives a motion to strike so long as it is "pertinent to" or "support[s]" an otherwise sufficient claim and, therefore, allegations "need not be indispensable elements of a

cause of action.” (Opp. at p. 8.) But the Code defines an “immaterial allegation” in two ways: “(1) [a]n allegation that is not essential to the statement of a claim or defense” or “(2) [a]n allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.” (CCP §§ 431.10(b), (c) and 436.) An allegation that is not essential to stating the claim is irrelevant matter no matter how Plaintiff labels it.

As noted by Defendant, Plaintiff attempts to justify including the subject allegations by contending that: •

- The allegations supply “essential background and vital contextual facts” (Opp. at p. 7);
- They “bolster” the laches claim (Opp. at p. 7);
- They are “background and contextual facts” (Opp. at p. 8); and
- They “bolster” the quiet title, constructive trust, and laches causes of action (Opp. at pp. 9-10).

However, the Opposition identifies no element of any cause of action to which a defendant’s feelings about his father, his adolescent coping habits, or his arrest record is relevant.

Quiet Title. A quiet title claim requires a description of the property, the plaintiff’s title and his basis, the adverse claims, and the date of determination. (CCP § 761.020.) Plaintiff contends that the allegations at issue “bolster” his claim that Defendant “has no valid, adverse claim” because Defendant “repetitively declined interest in the Realty and refused to be involved” in its administration. (Opp. at 9.) However, none of these allegations are relevant to the elements of Plaintiff’s quiet title claim or whether the Probate Order vested title in Defendant.

Laches. Laches is an affirmative defense that requires unreasonable delay in asserting a right plus acquiescence or prejudice. (*Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 68.) Plaintiff’s theory is that the Probate Order issued on September 25, 2015, and Defendant waited until June 2025 to act on it. (Complaint, ¶¶ 94-100, 102.) Why Defendant supposedly waited (resentment, abandonment issues, stubbornness) and why he supposedly stopped waiting (an arrest and possible restitution) change neither the number of years nor any prejudice to Plaintiff. Plaintiff’s claim that striking the passages would “eviscerate the essential factual foundation” of laches (Opp. at p. 10) contradicts his own Complaint. (Cf. Complaint, ¶¶ 94-100, 102.)

Constructive Trust. A constructive trust requires a res, the plaintiff’s right to it, and the defendant’s wrongful acquisition or detention of it. (Cal. Civil Code Cal. §§ 2223, 2224 and *Communist Party v. 522 Valencia, Inc.* (1995) 35 Cal.App.4th 980, 990.) Plaintiff contends that Defendant’s supposed reason for wanting to sell in 2025, a need to fund restitution, reveals his “bad faith, self-seeking posture.” (Opp. at 7:19-8:2, 10:1-4.) However, motive is not an element. A record owner who sells to raise money, for any reason, does not thereby wrongfully detain his own property; a non-owner does

not become one because his reasons for selling are unsympathetic or in “bad faith.” The arrest and restitution allegations add nothing to the claim.

Further, Plaintiff fails to acknowledge in his Opposition that he provided an itemized list of reasons why he is entitled to the requested relief. (Complaint, ¶¶ 56 [quiet title], 83 [constructive trust].) The allegations at issue are absent from both lists. (Ibid.) Moreover, the Motion does not remove any allegation that Plaintiff contends justifies his right to title to the Property. Rather, it seeks to remove unnecessary language. This is precisely the purpose of a motion to strike which operates “as a scalpel” and reaches “even single words or phrases.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

Finally, Plaintiff’s contentions that *Rosenfeld, Meyer & Susman v. Cohen* (1983) 146 Cal.App.3d 200 provides a basis to deny this motion do not have merit. Plaintiff contends that *Rosenfeld* has been overruled by “*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503. (Opp. at p. 9) is not accurate. As noted by Defendant, *Applied Equipment* disapproved *Rosenfeld* and eight other Court of Appeal decisions “to the extent they hold that a party to a contract can be held liable in tort based on a conspiracy to interfere with its own contract.” (*Applied Equipment, supra*, 7 Cal.4th at p. 521, fn. 10.) *Rosenfeld*’s statement that California’s pleading rules “require that extraneous material, such as evidentiary facts, be stricken” (146 Cal.App.3d at p. 223) stands. Moreover, contrary to Plaintiff’s assertions, *Rosenfeld* did not distinguish between “evidentiary trivialities” and “background facts” for purposes of a motion to strike.